

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
LUIS LOPES,

Plaintiff,

- against -

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER JAMES
BIONDO, POLICE OFFICER "BENDITO," WHOSE
FULL IDENTITY IS UNKNOWN, and P.O. JOHN DOE
NO. 1 - JOHN DOE NO. 3,

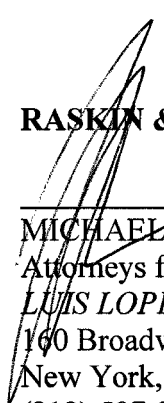
Defendants.
-----X

TO THE ABOVE NAMED DEFENDANT(S)

YOU ARE HEREBY SUMMONED to answer the Complaint in this action and to serve a copy of your answer, or, if the Complaint is not served with this Summons, to serve a Notice of Appearance, on the Plaintiff's Attorney(s) within twenty (20) days after the service of this Summons, exclusive of the date of service (or within thirty (30) days after the service is complete if this Summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint, plus interests and costs from the date of occurrence.

Dated: New York, New York
February 25, 2019

RASKIN & KREMINS, L.L.P.



MICHAEL F. KREMINS, ESQ.

Attorneys for Plaintiff

LUIS LOPES

160 Broadway - 4th Floor

New York, New York 10038

(212) 587-3434

File No.: N-4844

SEE ATTACHED RIDER

RIDER

THE CITY OF NEW YORK
NEW YORK CITY CORPORATION COUNSEL
Law Department
100 Church Street
New York, New York 10007

NEW YORK CITY POLICE DEPARTMENT
NEW YORK CITY CORPORATION COUNSEL
Law Department
100 Church Street
New York, New York 10007

POLICE OFFICER JAMES BIONDO
New York City Police Department
45th Precinct
2877 Barkley Avenue
Bronx, New York 10465

POLICE OFFICER "BENDITO"
New York City Police Department
45th Precinct
2877 Barkley Avenue
Bronx, New York 10465

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
LUIS LOPES,

Index No.

VERIFIED
COMPLAINT

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER JAMES
BIONDO, POLICE OFFICER "BENDITO," WHOSE
FULL IDENTITY IS UNKNOWN, and P.O. JOHN DOE
NO. 1 - JOHN DOE NO. 3,

Defendants.
-----X

Plaintiff, LUIS LOPES, by his attorneys RASKIN & KREMINS, L.L.P. complaining of
the Defendants, THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT,
POLICE OFFICER JAMES BIONDO, POLICE OFFICER "BENDITO," WHOSE FULL
IDENTITY IS UNKNOWN and POLICE OFFICERS JOHN DOE NO. 1 - JOHN DOE NO. 3,
upon information and belief, sets forth the following:

AS AND FOR A FIRST CAUSE OF ACTION

1. That at all times hereinafter mentioned, Plaintiff, LUIS LOPES, was and still is a resident of the County of Bronx, City and State of New York.
2. That at all times hereinafter mentioned, Defendant, THE CITY OF NEW YORK (hereinafter "THE CITY"), was and still is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
3. That at all times hereinafter mentioned, Defendant, THE NEW YORK CITY POLICE DEPARTMENT (hereinafter "NYPD"), was and still is a department and/or agency that is wholly owned and managed by Defendant, THE CITY OF NEW YORK.

4. That at all times hereinafter mentioned, Defendant, POLICE OFFICER JAMES BIONDO ("OFFICER BIONDO"), was employed by Defendant, THE CITY OF NEW YORK.

5. That at all times hereinafter mentioned, Defendant, POLICE OFFICER "BENDITO" WHOSE FULL IDENTITY IS UNKNOWN (hereinafter "OFFICER BENDITO"), was employed by Defendant, THE CITY OF NEW YORK.

6. That at all times hereinafter mentioned, Defendant, POLICE OFFICER "JOHN DOE #1," was employed by Defendant, THE CITY OF NEW YORK.

7. That at all times hereinafter mentioned, Defendant, POLICE OFFICER "JOHN DOE #2," was employed by Defendant, THE CITY OF NEW YORK.

8. That at all times hereinafter mentioned, Defendant, POLICE OFFICER "JOHN DOE #3," was employed by Defendant, THE CITY OF NEW YORK.

9. That at all times hereinafter mentioned, Officer BIONDO was employed by Defendant, NYPD.

10. That at all times hereinafter mentioned, Officer "BENDITO" was employed by Defendant, NYPD.

11. That at all times hereinafter mentioned, Defendant, POLICE OFFICER "JOHN DOE #1" was employed by Defendant, NYPD.

12. That at all times hereinafter mentioned, Defendant, POLICE OFFICER "JOHN DOE #2" was employed by Defendant, NYPD.

13. That at all times hereinafter mentioned, Defendant, POLICE OFFICER "JOHN DOE #3" was employed by Defendant, NYPD.

14. That on the 19th day of December 2018, a date within ninety (90) days after the date on which the subject incident occurred, a written Notice of Claim, dated and sworn to on December

19, 2018 ("Notice of Claim"), was duly served upon the Defendants, THE CITY OF NEW YORK and THE NYPD, pursuant to Section 50-e of the General Municipal Law.

15. That Plaintiff has complied with all conditions precedent to the commencement of this action, and in particular, within ninety (90) days of this occurrence Plaintiff has served a Notice of Claim with Defendants, NYCTA and MTA, and more than thirty (30) days have elapsed since the presentation of this claim, thereby the aforementioned Defendants have presumably waived an oral examination of Plaintiff, pursuant to Section 50-H of the General Municipal Law, since the time to request a hearing has expired.

16. More than thirty (30) days have elapsed since the presentation of the Notice of Claim, and adjustment or payment thereof has been refused or neglected by the Defendants, THE CITY OF NEW YORK, THE NYPD, OFFICER BIONDO, OFFICER "BENDITO," POLICE OFFICER "JOHN DOE #1," POLICE OFFICER "JOHN DOE #2," and POLICE OFFICER "JOHN DOE #3."

17. That Plaintiff has complied with all conditions precedent to the commencement of this action, and in particular, within ninety (90) days of this occurrence Plaintiff has served the Notice of Claim upon Defendants as aforesaid, more than thirty (30) days have elapsed since the presentation of their claim and adjustment or payment thereof has been neglected or refused by Defendants, THE CITY OF NEW YORK, THE NYPD, OFFICER BIONDO, OFFICER "BENDITO," POLICE OFFICER "JOHN DOE #1," POLICE OFFICER "JOHN DOE #2," and POLICE OFFICER "JOHN DOE #3," and Plaintiff have attended a hearing pursuant to Section 50-H of the General Municipal Law.

18. This action was commenced against the Defendants, THE CITY OF NEW YORK, THE NYPD, OFFICER BIONDO, OFFICER "BENDITO," POLICE OFFICER "JOHN DOE #1,"

POLICE OFFICER "JOHN DOE #2," and POLICE OFFICER "JOHN DOE #3," on a date within one (1) year and ninety (90) days after the occurrence of the incident upon which this action is based and/or the accrual of this cause of action.

19. That at all times hereinafter mentioned, Defendant, OFFICER BIONDO , was a member of THE NYPD and acting within the scope of his employment.

20. That at all times hereinafter mentioned, Defendant, OFFICER "BENDITO," was a member of THE NYPD and acting within the scope of her employment.

21. That at all times hereinafter mentioned, Defendant, POLICE OFFICER "JOHN DOE #1" , was a member of THE NYPD and acting within the scope of his employment.

22. That at all times hereinafter mentioned, Defendant, POLICE OFFICER "JOHN DOE #2" , was a member of THE NYPD and acting within the scope of his employment.

23. That at all times hereinafter mentioned, Defendant, POLICE OFFICER "JOHN DOE #3" , was a member of THE NYPD and acting within the scope of his employment.

24. That on or about October 6, 2018, at approximately 6:35 p.m., Defendants, OFFICER BIONDO, OFFICER "BENDITO," POLICE OFFICER "JOHN DOE #1," POLICE OFFICER "JOHN DOE #2," and POLICE OFFICER "JOHN DOE #3," came to be present at/near the vicinity of 3036 Westchester Avenue, Bronx County, City and State of New York, during the normal course of their employment with Defendants, THE CITY OF NEW YORK and/or THE NYPD.

25. That on or about October 6, 2018, at approximately 6:35 p.m., Plaintiff, LUIS LOPES, was lawfully at/near the vicinity of 3036 Westchester Avenue, Bronx County, City and State of New York.

26. Plaintiff, LUIS LOPES, was a lawful patron at and about a restaurant located at 3036 Westchester Avenue, Bronx County, City and State of New York.

27. Plaintiff, LUIS LOPES, had settled a dispute regarding form of payment with the restaurant owners where he was dinning when police officers, including OFFICER BIONDO, OFFICER "BENDITO," POLICE OFFICER "JOHN DOE #1," POLICE OFFICER "JOHN DOE #2," and POLICE OFFICER "JOHN DOE #3" arrived on scene and insisted upon making an arrest.

28. Plaintiff, LUIS LOPES, was forcibly doubled over, arm wrestled behind his back and handcuffed.

29. One of the NYPD Police Officers grabbed Plaintiff, LUIS LOPES, without his consent and without cause or provocation of any kind from Plaintiff.

30. One of the NYPD Police Officers told Plaintiff, LUIS LOPES, that he would spend a long weekend in jail if he did not shut up.

31. POLICE OFFICER "JOHN DOE #1" and/or Officer BIONDO applied handcuffs to Plaintiff, LUIS LOPES,'s wrists without consent and without cause or provocation of any kind from Plaintiff.

32. NYPD Police Officers, including Officer BIONDO and/or OFFICER "BENDITO" transported Plaintiff, LUIS LOPES, to the 45th Precinct, 2877 Barkley Avenue, Bronx, New York 10465 ("45th Precinct") immediately after his unlawful arrest where the handcuffs were so tightly fastened around his wrists that he still suffers from wrist pain.

33. NYPD Police Officers, including OFFICER BIONDO, OFFICER "BENDITO," POLICE OFFICER "JOHN DOE #1," POLICE OFFICER "JOHN DOE #2," and POLICE OFFICER "JOHN DOE #3" wrongfully denied Plaintiff, LUIS LOPES', repeated requests for medical attention and refused to provide Plaintiff with prompt, timely and adequate medical care.

34. That on or about October 6, 2018, from at or about 6:35 p.m. through October 6, 2018 at or about 11:00 p.m., as a result of the wrongful, willful, reckless, careless and negligent acts of Defendants herein, their agents, servants and/or employees, each Plaintiff sustained severe and permanent personal injuries.

35. That the foregoing occurred solely and wholly as a result of the negligence of Defendants herein, their agents servants and/or employees, and without any negligence on the part of Plaintiff contributing thereto.

36. That the Defendants, their agents, servants and/or employees were negligent and careless in hiring, supervising, controlling, maintaining, training, educating, interviewing and investigating their agents, servants and/or employees, including, but not limited to OFFICER BIONDO, OFFICER "BENDITO," POLICE OFFICER "JOHN DOE #1," POLICE OFFICER "JOHN DOE #2," and POLICE OFFICER "JOHN DOE #3," in negligently and carelessly failing to direct their agents, servants and/or employees, including but not limited to OFFICER BIONDO, OFFICER "BENDITO," POLICE OFFICER "JOHN DOE #1," POLICE OFFICER "JOHN DOE #2," and POLICE OFFICER "JOHN DOE #3," not to use improper and/or excessive force; in negligently and carelessly, willfully and wrongfully causing, permitting and allowing Plaintiff to be subjected to assault and battery, traumatized, pushed, shoved, falsely arrested and wrongfully imprisoned causing injury, emotional and psychological damage; in negligently and carelessly causing, permitting and allowing employees and/or personnel who were negligently trained, including, but not limited to OFFICER BIONDO, OFFICER "BENDITO," POLICE OFFICER "JOHN DOE #1," POLICE OFFICER "JOHN DOE #2," and POLICE OFFICER "JOHN DOE #3," to use improper and/or excessive force; in negligently and carelessly using improper and/or excessive force; in negligently and carelessly failing to adequately train police officers, including

but not limited to OFFICER BIONDO, OFFICER "BENDITO," POLICE OFFICER "JOHN DOE #1," POLICE OFFICER "JOHN DOE #2," and POLICE OFFICER "JOHN DOE #3," and/or other personnel for the public's safety, including Plaintiff herein; in denying prompt and necessary medical attention; and in being otherwise careless and negligent.

37. That due to the improper handcuff restraint, Plaintiff suffered constant, unresolved pain in his right hand/wrist, thereby requiring Plaintiff to go to the Stevenson Family Health Center, 731 White Plains Road, Bronx, New York 10473, on December 10, 2018. He was referred for wrist/hand x-rays, which he had the following day at University Diagnostic, 1200 Waters Place, Suite M-108, Bronx, New York 10461.

38. That by reason of the foregoing, Plaintiff became sick, sore, lame and disabled; Plaintiff has received permanent personal, emotional and psychological injuries that will continue for some time to come; each Plaintiff will expend significant sums of money for required medical attention and aid in an endeavor to be cured; and that each Plaintiff was caused to suffer great psychological injury, emotional agony and mental anguish and verily believes that same will continue for a long time to come, all to her damage in a sum which exceeds the jurisdictional limits of all lower courts.

AS AND FOR A SECOND CAUSE OF ACTION

39. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs 1 through 52 of the complaint herein with the same force and effect as if set forth herein at length.

40. Defendants, THE CITY OF NEW YORK, THE NYPD, OFFICER BIONDO, OFFICER "BENDITO," POLICE OFFICER "JOHN DOE #1," POLICE OFFICER "JOHN DOE #2," and POLICE OFFICER "JOHN DOE #3," their agents, servants and employees, including,

but not limited to OFFICER BIONDO, OFFICER "BENDITO," POLICE OFFICER "JOHN DOE #1," POLICE OFFICER "JOHN DOE #2," and POLICE OFFICER "JOHN DOE #3," owed a duty to each Plaintiff and other members of the general public to refrain from inflicting mental and emotional harm upon them.

41. Defendants, THE CITY OF NEW YORK, THE NYPD, OFFICER BIONDO, OFFICER "BENDITO," POLICE OFFICER "JOHN DOE #1," POLICE OFFICER "JOHN DOE #2," and POLICE OFFICER "JOHN DOE #3," their agents, employees and servants, including, but not limited to OFFICER BIONDO, OFFICER "BENDITO," POLICE OFFICER "JOHN DOE #1," POLICE OFFICER "JOHN DOE #2," and POLICE OFFICER "JOHN DOE #3," by intentionally, negligently, carelessly or recklessly engaging in the acts and omissions described hereinabove and hereinafter, and by further uttering epithets at Plaintiff, LUIS LOPES, arresting, detaining and imprisoning Plaintiff without a warrant and/or without reasonable cause to believe that a crime had been committed and that Plaintiff committed it, by forcing Plaintiff into a NYPD vehicle in such a manner that they sustained bodily injury, by confining them in a holding cell at the 45th Precinct Police Station for a period of approximately five (5) hours and falsely and unjustly charging Plaintiff with various crimes, engaged in conduct toward Plaintiff so shocking, extreme and outrageous that it exceeded all reasonable bounds of decency.

42. As a result of the foregoing conduct, Defendants, THE CITY OF NEW YORK, THE NYPD, their agents, employees and servants, including, but not limited to OFFICER BIONDO, OFFICER "BENDITO," POLICE OFFICER "JOHN DOE #1," POLICE OFFICER "JOHN DOE #2," and POLICE OFFICER "JOHN DOE #3," intentionally, negligently, carelessly or recklessly caused Plaintiff to suffer and to continue to suffer severe mental and emotional distress.

43. As a result of the extreme, shocking, outrageous, intentional, negligent, careless and/or reckless conduct that exceeded all reasonable bounds of decency, Defendants, THE CITY OF NEW YORK, THE NYPD, their agents, employees and servants, including, but not limited to OFFICER BIONDO, OFFICER "BENDITO," POLICE OFFICER "JOHN DOE #1," POLICE OFFICER "JOHN DOE #2," and POLICE OFFICER "JOHN DOE #3," Plaintiff suffered and continue to suffer severe mental and emotional distress, nervousness, tenseness, indignity, humiliation, shame and disgrace associated with the incident which is the subject of this complaint and the physical injuries.

44. The injuries sustained by Plaintiff was caused without any fault or want of care on the part of Plaintiff contributing thereto, but only by reason of intentional acts or conduct, negligence, carelessness and recklessness of Defendants, THE CITY OF NEW YORK, THE NYPD, their agents, employees and servants, including, but not limited to OFFICER BIONDO, OFFICER "BENDITO," POLICE OFFICER "JOHN DOE #1," POLICE OFFICER "JOHN DOE #2," and POLICE OFFICER "JOHN DOE #3,".

45. By reason of the foregoing, Plaintiff has been damaged in an amount which exceeds the jurisdictional amount of all lower courts which would otherwise have jurisdiction.

AS AND FOR A THIRD CAUSE OF ACTION

46. Plaintiff repeats reiterate and reallege each and every allegation contained in paragraphs 1 through 59 of the complaint herein with the same force and effect as if set forth herein at length.

47. At all times herein mentioned and in connection with all the acts alleged hereinabove, Plaintiff were wrongly restrained, detained, arrested, apprehended, confined and imprisoned by Defendants, THE CITY OF NEW YORK, THE NYPD, their agents, employees

and servants, including, but not limited to OFFICER BIONDO, OFFICER "BENDITO," POLICE OFFICER "JOHN DOE #1," POLICE OFFICER "JOHN DOE #2," and POLICE OFFICER "JOHN DOE #3,".

48. At all times herein mentioned and in connection with all the acts alleged hereinabove, Defendants, THE CITY OF NEW YORK, THE NYPD, their agents, employees and servants, including, but not limited to OFFICER BIONDO, OFFICER "BENDITO," POLICE OFFICER "JOHN DOE #1," POLICE OFFICER "JOHN DOE #2," and POLICE OFFICER "JOHN DOE #3," acted during the course of and within the scope of their duties as employees, agents or servants of the Defendants, THE CITY OF NEW YORK, THE NYPD.

49. At all times herein mentioned and in connection with all the acts alleged hereinabove, Defendants, THE CITY OF NEW YORK, THE NYPD, their agents, employees and servants, including, but not limited to OFFICER BIONDO, OFFICER "BENDITO," POLICE OFFICER "JOHN DOE #1," POLICE OFFICER "JOHN DOE #2," and POLICE OFFICER "JOHN DOE #3," acted willfully, maliciously, wrongfully, in reckless disregard of Plaintiff's interests and without proper legal authority, right, warrant, legal pretense or probable cause.

50. Defendants, THE CITY OF NEW YORK, THE NYPD, their agents, employees and servants, including, but not limited to OFFICER BIONDO, OFFICER "BENDITO," POLICE OFFICER "JOHN DOE #1," POLICE OFFICER "JOHN DOE #2," and POLICE OFFICER "JOHN DOE #3," did not have reasonable cause to believe that a crime was committed and that Plaintiff committed it.

51. Plaintiff did not consent to his arrest, detention, forcible apprehension, placement in handcuffs, confinement in a holding cell at 45th Precinct Police Station, search of his person, interrogation or any of the acts or omissions of Defendants, THE CITY OF NEW YORK, THE

NYPD, their agents, employees and servants, including, but not limited to OFFICER BIONDO, OFFICER "BENDITO," POLICE OFFICER "JOHN DOE #1," POLICE OFFICER "JOHN DOE #2," and POLICE OFFICER "JOHN DOE #3."

52. Plaintiff did not commit any crimes and/or other suspicious acts, and probable cause and/or reasonable suspicion did not exist to link Plaintiff to any crimes and/or other suspicious acts.

53. Plaintiff's arrest, detention, forcible apprehension, placement in handcuffs, confinement in a holding cell at 45th Precinct Police Station, search of their person, interrogation or other deprivation of their liberty by Defendants, THE CITY OF NEW YORK, THE NYPD, their agents, employees and servants, including, but not limited to OFFICER BIONDO, OFFICER "BENDITO," POLICE OFFICER "JOHN DOE #1," POLICE OFFICER "JOHN DOE #2," and POLICE OFFICER "JOHN DOE #3," was not otherwise privileged.

54. By reason of the foregoing, Plaintiff has sustained injuries as more full set forth above and has been damaged in an amount which exceeds the jurisdictional amount of all lower courts which would otherwise have jurisdiction.

AS AND FOR A FOURTH CAUSE OF ACTION

55. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs 1 through 68 of the complaint herein with the same force and effect as if set forth herein at length.

56. At all times herein mentioned and in connection with all the acts and omissions alleged hereinabove, Defendants, THE CITY OF NEW YORK, THE NYPD, their agents, employees and servants, including, but not limited to OFFICER BIONDO, OFFICER "BENDITO," POLICE OFFICER "JOHN DOE #1," POLICE OFFICER "JOHN DOE #2," and

POLICE OFFICER "JOHN DOE #3," caused Plaintiff to fear that Defendants, THE CITY OF NEW YORK, THE NYPD, their agents, employees and servants, including, but not limited to OFFICER BIONDO, OFFICER "BENDITO," POLICE OFFICER "JOHN DOE #1," POLICE OFFICER "JOHN DOE #2," and POLICE OFFICER "JOHN DOE #3," would inflict upon Plaintiff, or cause to be inflicted upon Plaintiff, harmful or offensive physical contact.

57. At all times herein mentioned and in connection with all the acts and omissions alleged hereinabove, Defendants, THE CITY OF NEW YORK, THE NYPD, their agents, employees and servants, including, but not limited to OFFICER BIONDO, OFFICER "BENDITO," POLICE OFFICER "JOHN DOE #1," POLICE OFFICER "JOHN DOE #2," and POLICE OFFICER "JOHN DOE #3," inflicted, or caused to be inflicted, offensive bodily contact and bodily harm upon Plaintiff.

58. At all times herein mentioned and in connection with all the acts and omissions alleged hereinabove, Defendants, THE CITY OF NEW YORK, THE NYPD, their agents, employees and servants, including, but not limited to OFFICER BIONDO, OFFICER "BENDITO," POLICE OFFICER "JOHN DOE #1," POLICE OFFICER "JOHN DOE #2," and POLICE OFFICER "JOHN DOE #3," acted during the course of and within the scope of their duties as employees, agents or servants of Defendants, THE CITY OF NEW YORK, THE NYPD.

59. At all times herein mentioned and in connection with all the acts and omissions alleged hereinabove, Defendants, THE CITY OF NEW YORK, THE NYPD, their agents, employees and servants, including, but not limited to OFFICER BIONDO, OFFICER "BENDITO," POLICE OFFICER "JOHN DOE #1," POLICE OFFICER "JOHN DOE #2," and POLICE OFFICER "JOHN DOE #3," acted willfully, maliciously, wrongfully, in reckless disregard of Plaintiff's interests and without proper legal authority, right, warrant, legal pretense

or probable cause and without consent of Plaintiff.

60. By reason of the foregoing, Plaintiff were fearful of imminent bodily injury, and suffered fright, apprehension and humiliation.

61. By reason of the foregoing, Plaintiff sustained physical injury and offensive bodily contact and physical injuries as alleged above.

62. By reason of the foregoing, Plaintiff have been damaged in an amount which exceeds the jurisdictional amount of all lower courts which would otherwise have jurisdiction.

AS AND FOR A FIFTH CAUSE OF ACTION

63. Plaintiff repeat and reallege the allegations contained in paragraphs 1 through 76 above with the same force and effect as though the same were here fully set forth.

64. On or about October 30, 2016, Defendants, THE CITY OF NEW YORK, THE NYPD, their agents, employees and servants, including, but not limited to OFFICER BIONDO, OFFICER "BENDITO," POLICE OFFICER "JOHN DOE #1," POLICE OFFICER "JOHN DOE #2," and POLICE OFFICER "JOHN DOE #3," as agents, employee, or servants of Defendants, THE CITY OF NEW YORK, THE NYPD, deprived Plaintiff of his liberty and civil rights, including his Fourth Amendment rights to be free from unreasonable seizure and not to be subjected to unreasonable force in the course of an arrest, without due process of law.

65. On or about October 30, 2016, Defendants, THE CITY OF NEW YORK, THE NYPD, their agents, employees and servants, including, but not limited to OFFICER BIONDO, OFFICER "BENDITO," POLICE OFFICER "JOHN DOE #1," POLICE OFFICER "JOHN DOE #2," and POLICE OFFICER "JOHN DOE #3," as agents, employees, or servants of the Defendants, THE CITY OF NEW YORK and THE NYPD, were acting under color of state law in their unlawful arrest, apprehension, detention, search and interrogation of Plaintiff and in the

application of unreasonable force during the course of their unlawful arrest, apprehension, detention, search and interrogation of Plaintiff and abused their official power.

66. In their unlawful arrest, apprehension, detention, search and interrogation of Plaintiff, Defendants, THE CITY OF NEW YORK, THE NYPD, their agents, employees and servants, including, but not limited to OFFICER BIONDO, OFFICER "BENDITO," POLICE OFFICER "JOHN DOE #1," POLICE OFFICER "JOHN DOE #2," and POLICE OFFICER "JOHN DOE #3," as agents, employees, or servants of the Defendants, THE CITY OF NEW YORK and THE NYPD, acted in their capacity as authorized decision-makers and makers of official policy of the Defendants, THE CITY OF NEW YORK and THE NYPD.

67. In the application of unreasonable force during the course of their unlawful arrest, apprehension, detention, search and interrogation of Plaintiff, Defendants, THE CITY OF NEW YORK, THE NYPD, their agents, employees and servants, including, but not limited to OFFICER BIONDO, OFFICER "BENDITO," POLICE OFFICER "JOHN DOE #1," POLICE OFFICER "JOHN DOE #2," and POLICE OFFICER "JOHN DOE #3," as agents, employees, or servants of the Defendants, THE CITY OF NEW YORK, THE NYPD, acted in their capacity as authorized decision-makers and makers of official policy of the Defendants, THE CITY OF NEW YORK, THE NYPD.

68. Defendants, THE CITY OF NEW YORK, THE NYPD, their agents, employees and servants, including, but not limited to OFFICER BIONDO, OFFICER "BENDITO," POLICE OFFICER "JOHN DOE #1," POLICE OFFICER "JOHN DOE #2," and POLICE OFFICER "JOHN DOE #3," did not have reasonable cause to believe that a crime was committed and that Plaintiff committed it.

69. Plaintiff did not consent to his arrest, detention, forcible apprehension, placement in handcuffs, confinement in a holding cell at 40th Precinct Police Station, search of his person, interrogation or any of the acts or omissions of Defendants, THE CITY OF NEW YORK, THE NYPD, their agents, employees and servants, including, but not limited to OFFICER BIONDO, OFFICER "BENDITO," POLICE OFFICER "JOHN DOE #1," POLICE OFFICER "JOHN DOE #2," and POLICE OFFICER "JOHN DOE #3,".

70. Plaintiff did not commit any crimes and/or other suspicious acts, and probable cause and/or reasonable suspicion did not exist to link Plaintiff to any crimes and/or other suspicious acts.

71. Plaintiff's arrest, detention, forcible apprehension, placement in handcuffs, confinement in a holding cell at 45th Precinct Police Station, search of his person, interrogation or other deprivation of his liberty by Defendants, THE CITY OF NEW YORK, THE NYPD, their agents, employees and servants, including, but not limited to OFFICER BIONDO, OFFICER "BENDITO," POLICE OFFICER "JOHN DOE #1," POLICE OFFICER "JOHN DOE #2," and POLICE OFFICER "JOHN DOE #3," were not otherwise privileged.

72. Plaintiff did not present an immediate threat to the safety of Defendants, THE CITY OF NEW YORK, THE NYPD, their agents, employees and servants, including, but not limited to OFFICER BIONDO, OFFICER "BENDITO," POLICE OFFICER "JOHN DOE #1," POLICE OFFICER "JOHN DOE #2," and POLICE OFFICER "JOHN DOE #3,".

73. Plaintiff did not actively resist arrest at the time Defendants, THE CITY OF NEW YORK, THE NYPD, their agents, employees and servants, including, but not limited to OFFICER BIONDO, OFFICER "BENDITO," POLICE OFFICER "JOHN DOE #1," POLICE OFFICER "JOHN DOE #2," and POLICE OFFICER "JOHN DOE #3," used excessive force.

74. Defendants, THE CITY OF NEW YORK, THE NYPD, their agents, employees and servants, including, but not limited to OFFICER BIONDO, OFFICER "BENDITO," POLICE OFFICER "JOHN DOE #1," POLICE OFFICER "JOHN DOE #2," and POLICE OFFICER "JOHN DOE #3," are liable to Plaintiff for the deprivation of Plaintiff's liberty and civil rights, including his Fourth Amendment rights to be free from unreasonable seizure and not to be subjected to unreasonable force in the course of an arrest, by virtue of 42 U.S.C. §1983 and the Fourteenth Amendment of the Constitution of the United States.

75. By reason of the foregoing violations of 42 U.S.C. §1983, and as a result of the injuries described hereinabove sustained by Plaintiff, Plaintiff have suffered damages.

76. Solely by reason of the violation of 42 U.S.C. §1983 by the Defendants, THE CITY OF NEW YORK, THE NYPD, their agents, employees and servants, including, but not limited to OFFICER BIONDO, OFFICER "BENDITO," POLICE OFFICER "JOHN DOE #1," POLICE OFFICER "JOHN DOE #2," and POLICE OFFICER "JOHN DOE #3," and as a direct and proximate cause thereof, Plaintiff have suffered the personal injuries alleged above.

77. As a result of the violation of 42 U.S.C. §1983 by the Defendants, THE CITY OF NEW YORK, THE NYPD, their agents, employees and servants, including, but not limited to OFFICER BIONDO, OFFICER "BENDITO," POLICE OFFICER "JOHN DOE #1," POLICE OFFICER "JOHN DOE #2," and POLICE OFFICER "JOHN DOE #3," as set forth above, and as a result of the injuries sustained by Plaintiff, Plaintiff have been damaged in an amount which exceeds the jurisdictional amount of all lower courts which would otherwise have jurisdiction.

AS AND FOR A SIXTH CAUSE OF ACTION

78. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs 1 through 91 of the complaint herein with the same force and effect as if set forth herein

at length.

79. That the Defendants, OFFICER BIONDO, OFFICER "BENDITO," POLICE OFFICER "JOHN DOE #1," POLICE OFFICER "JOHN DOE #2," and POLICE OFFICER "JOHN DOE #3," acting under the color of authority and without provocation, viciously and maliciously attacked Plaintiff causing them to suffer serious, severe, permanent personal injuries and extreme conscious physical, mental and emotional pain and suffering, and required, and will require, hospitalization, medical care and treatment.

80. That Defendants, OFFICER BIONDO, OFFICER "BENDITO," POLICE OFFICER "JOHN DOE #1," POLICE OFFICER "JOHN DOE #2," and POLICE OFFICER "JOHN DOE #3," acting under the color of authority and without provocation, viciously and maliciously assaulted Plaintiff causing them to suffer serious, severe, permanent and extreme conscious physical, mental and emotional pain and suffering, and required, and will require, hospitalization, medical care and treatment.

81. That by reason of the foregoing, Plaintiff became sick, sore, lame and disabled; Plaintiff have received permanent personal, emotional and psychological injuries that will continue for some time to come; Plaintiff will expend significant sums of money for required medical attention and aid in an endeavor to be cured; and that Plaintiff were caused to suffer great psychological injury, emotional agony and mental anguish and verily believes that same will continue for a long time to come, all to his damage in a sum which exceeds the jurisdictional limits of all lower courts.

AS AND FOR A SEVENTH CAUSE OF ACTION

82. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs 1 through 99 of the complaint herein with the same force and effect as if set forth herein

at length.

83. That Defendants OFFICER BIONDO, OFFICER "BENDITO," POLICE OFFICER "JOHN DOE #1," POLICE OFFICER "JOHN DOE #2," and POLICE OFFICER "JOHN DOE #3," acting under the color of authority and without provocation, viciously and maliciously falsely arrested both Plaintiff, wrongfully depriving Plaintiff of his liberty.

84. That by reason of the foregoing, Plaintiff became sick, sore, lame and disabled; Plaintiff have received permanent personal, emotional and psychological injuries that will continue for some time to come; Plaintiff will expend significant sums of money for required medical attention and aid in an endeavor to be cured; and that Plaintiff were caused to suffer great psychological injury, emotional agony and mental anguish and verily believe that same will continue for a long time to come, all to his damage in a sum which exceeds the jurisdictional limits of all lower courts.

AS AND FOR A EIGHTH CAUSE OF ACTION

85. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs 1 through 102 of the complaint herein with the same force and effect as if set forth herein at length.

86. That Defendants, OFFICER BIONDO, OFFICER "BENDITO," POLICE OFFICER "JOHN DOE #1," POLICE OFFICER "JOHN DOE #2," and POLICE OFFICER "JOHN DOE #3," acting under the color of authority and without provocation, viciously and maliciously falsely imprisoned Plaintiff, for approximately twelve (12) hours, wrongfully depriving Plaintiff of his liberty.

87. That Plaintiff were conscious of his confinement, did not consent to his confinement, and the confinement was not otherwise privileged or with just or probable cause.

88. That by reason of the foregoing, Plaintiff became sick, sore, lame and disabled; Plaintiff have received permanent personal, emotional and psychological injuries that will continue for some time to come; Plaintiff will expend significant sums of money for required medical attention and aid in an endeavor to be cured; and that Plaintiff were caused to suffer great psychological injury, emotional agony and mental anguish and verily believes that same will continue for a long time to come, all to his damage in a sum which exceeds the jurisdictional limits of all lower courts.

AS AND FOR A NINTH CAUSE OF ACTION

89. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs 1 through 106 of the complaint herein with the same force and effect as if set forth herein at length.

90. That Defendants, THE CITY OF NEW YORK and THE NYPD, acting under the color of authority and without provocation, viciously and maliciously falsely prosecuted Plaintiff, wrongfully depriving Plaintiff of his liberty and due process of law.

91. That Defendants, THE CITY OF NEW YORK and THE NYPD, acting under the color of authority and without provocation, viciously and maliciously falsely compelled Plaintiff to appear in public and in court, wrongfully humiliating Plaintiff herein and depriving them of his liberty and due process of law.

92. That by reason of the foregoing, Plaintiff became sick, sore, lame and disabled; Plaintiff have received permanent personal, emotional and psychological injuries that will continue for some time to come; Plaintiff will expend significant sums of money for required medical attention and aid in an endeavor to be cured; and that Plaintiff were caused to suffer great psychological injury, emotional agony and mental anguish and verily believe that same will

continue for a long time to come, all to his damage in a sum which exceeds the jurisdictional limits of all lower courts.

AS AND FOR A TENTH CAUSE OF ACTION

93. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs 1 through 110 of the complaint herein with the same force and effect as if set forth herein at length.

94. That the aforementioned acts of Defendants, under color of law and under color of their authority as employees, agents and/or servants of THE CITY OF NEW YORK and THE NYPD, violated Plaintiff's property and liberty interests guaranteed to the Plaintiff as citizens of the United States under the Fourteenth Amendment to the United States Constitution, and are therefore liable pursuant to 42 U.S.C. § 1983.

95. That the aforementioned acts of Defendants, under color of law and under color of their authority as employees, agents and/or servants of THE CITY OF NEW YORK and THE NYPD, violated Plaintiff's property and liberty interests guaranteed to Plaintiff as residents of the State of New York under Article 1, Section 6 of the Constitution of the State of New York.

96. That by reason of the foregoing, Plaintiff became sick, sore, lame and disabled; Plaintiff have received permanent personal, emotional and psychological injuries that will continue for some time to come; Plaintiff will expend significant sums of money for required medical attention and aid in an endeavor to be cured; and that Plaintiff were caused to suffer great psychological injury, emotional agony and mental anguish and verily believes that same will continue for a long time to come, all to his damage in the sum which exceeds the jurisdictional limits of all lower courts.

AS AND FOR A ELEVENTH CAUSE OF ACTION

97. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs 1 through 114 of the complaint herein with the same force and effect as if set forth herein at length.

98. That the aforementioned acts of OFFICER BIONDO, OFFICER "BENDITO," POLICE OFFICER "JOHN DOE #1," POLICE OFFICER "JOHN DOE #2," and POLICE OFFICER "JOHN DOE #3," under color of law and under color of their authority as employees, agents and/or servants of THE CITY OF NEW YORK and THE NYPD, violated Plaintiff's right to equal protection under the law guaranteed to Plaintiff as citizens of the United States under the Fourteenth Amendment to the United States Constitution, and are therefore liable pursuant to 42 U.S.C. § 1983.

99. That the aforementioned acts of Defendants, OFFICER BIONDO, OFFICER "BENDITO," POLICE OFFICER "JOHN DOE #1," POLICE OFFICER "JOHN DOE #2," and POLICE OFFICER "JOHN DOE #3," under color of law and under color of their authority as employees, agents and/or servants of THE CITY OF NEW YORK and THE NYPD, violated Plaintiff's right to equal protection under the law guaranteed to Plaintiff as residents of the State of New York under Article 1, Section 11 of the Constitution of the State of New York.

100. That by reason of the foregoing, Plaintiff became sick, sore, lame and disabled; Plaintiff have received permanent personal, emotional and psychological injuries that will continue for some time to come; Plaintiff will expend significant sums of money for required medical attention and aid in an endeavor to be cured; and that Plaintiff were caused to suffer great psychological injury, emotional agony and mental anguish and verily believes that same will continue for a long time to come, all to his damage in the sum which exceeds the jurisdictional

limits of all lower courts.

AS AND FOR A TWELVTH CAUSE OF ACTION

101. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs 1 through 118 of the complaint herein with the same force and effect as if set forth herein at length.

102. That by reason of the foregoing acts and/or omissions of Defendants in violation of the Fourteenth Amendment to the United States Constitution, Plaintiff have been forced to bring this lawsuit to enforce 42 U.S.C. § 1983 and as a result thereof has suffered significant economic loss in the form of attorney's fees.

103. That pursuant to 42 U.S.C. § 1983, Plaintiff are entitled to reasonable attorney's fees as part of costs.

AS AND FOR A THIRTEENTH CAUSE OF ACTION

104. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs 1 through 121 of the complaint herein with the same force and effect as if set forth herein at length.

105. That at all times hereinafter mentioned, Defendants, without cause or justification, did intentionally inflict emotional distress upon Plaintiff, causing Plaintiff to suffer mental pain and anguish, emotional trauma and conscious pain and suffering.

106. That at all times hereinafter mentioned, Defendants, without cause or justification, did negligently inflict emotional distress upon Plaintiff, causing Plaintiff to suffer mental pain and anguish, emotional trauma and conscious pain and suffering.

107. That by reason of the foregoing, Plaintiff became sick, sore, lame and disabled; Plaintiff has received permanent personal, emotional and psychological injuries that will continue

for some time to come; Plaintiff will expend significant sums of money for required medical attention and aid in an endeavor to be cured; and that Plaintiff was caused to suffer great psychological injury, emotional agony and mental anguish and verily believes that same will continue for a long time to come, all to his damage in the sum which exceeds the jurisdictional limits of all lower courts.

108. This action falls into one or more of the exceptions set forth in CPLR § 1602.

WHEREFORE, Plaintiff, **LUIS LOPES**, demands judgment against Defendants, on the First Cause of Action, in a sum which exceeds the jurisdictional limits of all lower Courts, and demands judgment against Defendants, on the Second Cause of Action, in a sum which exceeds the jurisdictional limits of all lower Courts, together with the costs and disbursements of this action, and for such other and further relief as to this Court may seem just, proper and equitable.

Dated: New York, New York
February 25, 2019

Yours, etc.
RASKIN & KREMINS, LLP
Attorneys for Plaintiff
LUIS LOPES

MICHAEL F. KREMINS, ESQ.
160 Broadway, 4th Floor
New York, New York 10038
(212) 587-3434

ATTORNEY'S VERIFICATION

MICHAEL F. KREMINS, an attorney duly admitted to practice law in the State of New York affirms the following under penalties of perjury:

I am a member of RASKIN & KREMINS, L.L.P., attorneys of record for the Plaintiff herein.

I have read the annexed COMPLAINT, and know the contents thereof, and upon information and belief, affirmant believes the matters alleged therein to be true.

The reason this Verification is made by the affirmant and not by Plaintiff is that the Plaintiff resides in a county other than the one in which the Plaintiff' attorneys' maintain their offices.

The source of affirmant's information and the grounds of his belief are communications, papers, reports and investigations contained in the file.

Dated: New York, New York
February 25, 2019



MICHAEL F. KREMINS

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK
LUIS LOPES,

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER JAMES
BIONDO, POLICE OFFICER "BENDITO," WHOSE
FULL IDENTITY IS UNKNOWN, and POLICE OFFICERS
JOHN DOE NO. 1 - JOHN DOE NO. 3,

Defendants.

VERIFIED SUMMONS AND COMPLAINT

RASKIN & KREMINS, L.L.P.
Attorneys for Plaintiff(s)
160 Broadway - 4th Floor
New York, New York 10038
(212) 587-3434

To: Attorney(s) for Defendant(s)

PLEASE TAKE NOTICE
NOTICE OF
ENTRY

☐ that the within is a (certified) true copy of an Order entered in the office of the Clerk
of the within named Court on , 2000.

NOTICE OF
SETTLEMENT

☐ that an Order of which the within is a true copy will be presented to the Hon. ,
one of the judges of the within named Court, at , on .

Dated: New York, New York

Yours, etc.,

RASKIN & KREMINS, LLP.
Attorneys for Plaintiff(s)
160 Broadway - 4th Floor
New York, New York 10038
(212) 587-3434

Index No.

SUPREME COURT OF THE STATE OF NEW YORK

COUNTY OF BRONX

LUIS LOPES,

Plaintiffs,

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE
OFFICER JAMES BIONDO, POLICE OFFICER "BENDITO", WHOSE FULL IDENTITY IS
UNKNOWN, and P.O. JOHN DOE NO.1 – JOHN DOE NO. 3,

Defendants.

SUMMONS AND VERIFIED COMPLAINT

RASKIN & KREMINS, LLP
Attorneys for Plaintiffs
160 Broadway - 4th Floor
New York, New York 10038
(212) 587-3434

To: Attorney(s) for Defendant(s)

PLEASE TAKE NOTICE
NOTICE OF
ENTRY

☐ that the within is a (certified) true copy of an Order entered in the office of the Clerk
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NOTICE OF
SETTLEMENT

☐ that an Order of which the within is a true copy will be presented to the Hon.
the judges of within named Court, at , on

Dated: New York, New York

Yours, etc.,

RASKIN & KREMINS, LLP
Attorneys for Plaintiff(s)
160 Broadway-4th Floor
New York, NY 10038
(212) 587-3434